

CROSS-EXAMINATION OF THE COMPLAINANT
C.C. NO. 1847/SS/2026

Matter: Ritesh Ahluwalia v. Devraj Malkani
Recorded on: 20.02.2026
Cross-Examined By: Ms. Farida Contractor, Advocate for the Accused

Q1. Please state your relationship with the Accused prior to the transaction in question.

A. The Accused was known to me socially for about two years before I advanced the loan; we had no business dealings prior to this transaction.

Q2. What was the purpose for which the loan of Rs. 36,00,000 was advanced?

A. The Accused told me he required the amount for personal financial requirements; I did not enquire further into the specific purpose.

Q3. Please explain the discrepancy between the amount in figures and in words on the cheque.

A. I did not fill in the cheque; it was filled in and signed by the Accused himself and handed to me. I cannot explain why the words differ from the figures, save that the cheque was not written out by me.

Q4. What was the actual rate of interest agreed between you and the Accused?

A. It was agreed at 15% per annum as recorded in the loan agreement; I concede that my ledger entries describe the interest on an 18% basis, which is a clerical error in my personal records.

Q5. Did you issue any receipt for the interest amount of Rs. 1,08,000 received on 10.11.2024?

A. No separate receipt was issued; it was received by bank transfer and is reflected in my bank statement.

Q6. Is it correct that you presented the cheque well within its period of validity?

A. Yes, the cheque dated 05.09.2025 was presented for encashment on 08.09.2025, within three days of its date.

Q7. What steps did you take upon the cheque being returned unpaid?

A. I caused a statutory notice to be issued through my counsel within the statutory period of 30 days from the date of the return memo.

Q8. Did the Accused reply to the statutory notice dated 22.09.2025?

A. No, the Accused neither replied to the notice nor made any payment within 15 days of its receipt.

Q9. Is it not true that the cheque was handed over to you only as security for a future transaction that never materialised?

A. That is not correct. The cheque was issued towards discharge of the subsisting loan liability, as recorded in the loan agreement and the ledger.

Q10. Do you have any independent witness to the disbursal of the loan amount?

A. The loan amount was disbursed by bank transfer and is reflected in my bank statement; there was no cash component requiring an independent witness.

Q11. Why does your ledger not itemise interest for each individual month in a separately signed format?

A. The ledger is a running personal record maintained in the ordinary course; it records the principal, the interest accrued and the payment received, and is certified as a true extract.

Q12. Is it correct that you have claimed compensation in the complaint of Rs. 41,00,000, exceeding the cheque amount?

A. Yes, having regard to the cheque amount together with interest, costs and the harassment caused to me.

Q13. Did you have the financial capacity to advance a friendly loan of Rs. 36,00,000 in August 2024?

A. Yes, I am engaged in business consultancy and had sufficient funds available, as would appear from my bank statement.
